

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

-----X
**RAYMOND LIZARDI and LINDA CUNNINGHAM-
LIZARDI,**

Plaintiffs,

-against-

**THE CITY OF NEW YORK, SGT. EMILE PROVENCHER
(Shield 4239), DET. SHANNON BROOKS (Shield 3463),
DET. LARRY MARAJ (Shield 4801), DET. STEVEN
GANSROW (Shield 2866), DET. CHARLES FICO (Shield
7201), CAPT. PAUL LICHTBRAUN, LIEUT. ANTHONY
RONDA, and JOHN and JANE DOES 1-5,**

Defendants.
-----X

10 CV 4593 (LTS)(RLE)

**FIRST AMENDED
COMPLAINT**

**JURY TRIAL
DEMANDED**

Plaintiffs **RAYMOND LIZARDI** and **LINDA CUNNINGHAM-LIZARDI**, by their attorney, Joel Berger, Esq., for their complaint allege, upon information and belief, as follows:

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiffs' rights under the Constitution and laws of the United States and the State of New York

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. § 1391 (b).

PENDENT JURISDICTION

5. This Court also has jurisdiction over plaintiffs' state law claims, pursuant to its pendent or supplemental jurisdiction as codified in 28 U.S.C. § 1367.

6. On May 3, 2010, within ninety days after the claims alleged in this complaint arose, a verified Notice of Claim was duly served upon the Comptroller of the City of New York pursuant to General Municipal Law § 50-e.

7. At least thirty days have elapsed since the service of the Notice of Claim, and adjustment or payment of the claims has been neglected or refused by defendant City of New York.

8. This action was commenced within one year and ninety days after the happening of the events upon which the claims are based.

JURY DEMAND

9. Plaintiffs demand a trial by jury in this action.

PARTIES

10. Plaintiff **RAYMOND LIZARDI**, an 80 year-old Caucasian male, is a citizen of the United States and a resident of the State of New York. He lives with his wife, plaintiff Linda Cunningham-Lizardi, at 216 West 63rd Street, Apartment 1B, New York, NY 10023 (the Amsterdam Houses of the New York City Housing Authority (NYCHA)). Mr. Lizardi and his wife are the only two occupants of the apartment. Mr. Lizardi is a former Housing and Heating Plant Technician for the Amsterdam Houses, a position from which he retired approximately 15 years ago. He suffers from numerous ailments including hypertension, hyperlipidemia and atypical angina. He and his wife have been together as a couple for approximately 25 years and have been married for 15 years.

11. Plaintiff **LINDA CUNNINGHAM-LIZARDI**, a 60 year-old African-American woman, is also a citizen of the United States and a resident of the State of New York. She has lived in NYCHA's Amsterdam Houses without incident her entire life, and has lived in her current apartment for nearly 30 years. She has served on the Tenant Patrol for her building and as Captain and Co-

Captain of the Tenant Patrol.

12. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

13. At all times relevant herein, defendants Emile Provencher (Shield 4239), Shannon Brooks (Shield 3463), Larry Maraj (Shield 4801), Steven Gansrow (Shield 2866), Charles Fico (Shield 7201), Capt. Lichtbraun, Lt. Ronda and John and Jane Does 1-5 were police detectives or supervisors employed by the NYPD. It is believed that all were assigned to Narcotics Borough Manhattan North except for Fico, who worked for the unit of the Narcotics Division that handles drug-sniffing dogs. Plaintiff does not know the real names of defendants John and Jane Does 1-5.

14. At all times relevant herein, defendants Provencher, Brooks, Maraj, Gansrow, Fico, Lichtbraun, Ronda and John and Jane Does 1-5 were acting as agents, servants and employees of defendant City of New York and the NYPD.

15. At all times relevant herein, all defendants were all acting under color of state law.

FACTS

16. At approximately 5:30 A.M. on Tuesday, March 16, 2010, several police officers, dressed in riot gear and armed with rifles and other firearms, banged repeatedly on plaintiffs' door. One of the officers, possibly Sgt. Provencher, stated that there was a "dangerous felon" running loose in the neighborhood and asked if plaintiffs were all right. Plaintiffs replied that they were all right and that they were the only individuals in the apartment.

17. The officer who spoke of a “dangerous felon” asked if the police could come in to “check on” plaintiffs, and plaintiffs consented to their entry for that limited purpose.

18. Once the police entered the apartment they did not merely look to see if another individual was there, but instead began opening drawers and cabinets, searching for drugs. When plaintiffs asked what was going on, the officers did not even answer.

19. One of the officers tried to break the lock on one closet door, refusing Ms. Cunningham-Lizardi’s request that she open it for the police with her key, claiming that he had to be the one to open it. She opened it with her key anyway to prevent him from damaging her lock.

20. The police also took photographs of plaintiffs and the apartment, refusing plaintiffs request that they not do so.

21. The police also brought a drug-sniffing dog, a large German Shepard, into the apartment to assist them in searching for drugs. The dog was taken into every room of the apartment to search for drugs. It is believed that the dog handler was either defendant Fico or one of the John Doe defendants herein.

22. One of the officers also displayed a photograph of a male individual and, without naming the individual, asked Ms. Cunningham-Lizardi if she knew him. The photograph was obviously that of Emir Williams a/k/a Emir Cunningham, a nephew of Ms. Cunningham-Lizardi. She replied that she did know who he is.

23. Emir does not live with plaintiffs -- he is not on the lease and is not listed with NYCHA as an occupant -- and plaintiffs forbid him from staying over in their apartment. He has an arrest record and plaintiffs are very wary of any involvement with him. They sometime see him in the neighborhood but interact with him at most three times a year, and only when he knocks on their door

and asks for something to eat. His actual residence is in Edgewood, Maryland, the home of his mother (Ms. Lizardi-Cunningham's sister, Loretta Cunningham). Until approximately two weeks before the raid he had been living in Apartment 5A of Claimants' building, with a girlfriend with whom he had fathered a baby boy born February 3, 2010.

24. The police were fully aware that Emir had been living in Apartment 5A of the building. Armed with both an arrest warrant for Emir and a search warrant for Apartment 5A, they had raided that apartment first, prior to their arrival at plaintiffs' door. All of the named defendants herein participated in or supervised that raid. Emir was not present in 5A. They searched Apartment 5A, extensively but found no drugs. They arrested Emir's girlfriend, Shaquasia Hall, and charged her with criminally using drug paraphernalia in the second degree (Penal Law § 220.50 (3)), a Class A misdemeanor, solely because they found an ordinary household scale and "assorted ziplocks" -- clean, ordinary plastic bags that can be used to hold buttons, pills, and other ordinary household items -- in a shoebox in a closet used exclusively by Emir. (They never followed through by submitting charges against her.) Then they stated that they would proceed downstairs to plaintiffs' apartment.

25. The police did not have a search warrant for plaintiffs' dwelling. They had only the arrest warrant for Emir Williams, for selling drugs, a charge that resulted from activity by Williams that was not alleged to have taken place in plaintiffs' apartment.

26. Nonetheless, defendants Provencher, Brooks, Maraj and Gansrow, and possibly some of the John and Jane Doe defendants, did not limit themselves to looking in places in plaintiffs' dwelling where a person might be hiding. Instead, they decided to search plaintiffs' apartment for drugs, opening cabinets and drawers, taking photographs, and even bringing in a large drug-sniffing German Shepard that was led into every room of the apartment. Defendants Lichtbraun, Ronda and

Provencher were the supervisors responsible for this activity, and either directed it personally or acquiesced in it and failed to report this illegal conduct to their superiors. The defendant officers all covered up their illegal behavior by failing to make any written record of their activities regarding Apartment 1B, not even a record that they had sought to execute the arrest warrant for Williams in Apartment 1B and had failed to find him. They made no written record whatsoever that they had gone to and entered plaintiffs' dwelling, let alone a record of what they had done there.

27. Even as to Williams the police lied to obtain plaintiffs' very limited consent to enter the apartment and "check" on them, claiming only that they were looking for a "dangerous felon" running loose in the neighborhood. In so doing they violated New York State Criminal Procedure Law § 120.80 (4), which required them to state clearly their "authority and purpose" when attempting to execute an arrest warrant at "the dwelling of a third party who is not the subject of the arrest warrant."

28. At no time did defendants they ask consent to conduct a full-scale search of the apartment for drugs including drawers and cabinets, photographing and the use of a drug-sniffing police dog, and at no time was any such consent given. To the contrary, plaintiffs explicitly asked the officers to refrain from such activity -- but to no avail.

29. Plaintiffs were terrorized by the NYPD's intrusion, and the elderly Raymond Lizardi became dizzy and experienced difficulty breathing. Ms. Cunningham-Lizardi called 911 and Mr. Lizardi was rushed by ambulance to Roosevelt Hospital, where he was admitted and kept overnight.

30. During the incident Ms. Cunningham-Lizardi repeatedly asked the police to leave. They refused, even laughing at her. When the ambulance arrived and plaintiffs were departing for the hospital she again asked the police to leave, and this time they complied but stated, laughing, "we'll

be back.”

31. Approximately a month after the Incident, plaintiffs received a certified mail notice from NYCHA stating that a recommendation had been made to evict them because of illegal activities by Emir Williams a/k/a Emir Cunningham. A NYCHA proceeding on that charge is still pending.

32. The NYPD has a uniform policy and practice of harassing all occupants of a raided NYCHA apartment even if no arrests have been made and no contraband has been recovered. This uniform policy and practice includes bringing about the issuance of eviction notices and hearings against NYCHA leaseholders. The NYPD actively participates in such NYCHA proceedings.

FIRST CLAIM FOR RELIEF

33. Plaintiffs repeat and reallege the allegations contained in ¶¶ 1-32.

34. Defendants, by their conduct toward plaintiffs alleged herein, violated plaintiffs’ rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

SECOND CLAIM FOR RELIEF

35. Plaintiffs repeat and reallege the allegations contained in ¶¶ 1-32 and 34.

36. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD properly to select, train, supervise, promote and discipline police officers, detectives and supervisory officers.

37. The failure of the City of New York and the NYPD properly to select, train, supervise, promote and discipline police officers, detectives and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.

38. The official policies, practices and customs of the City of New York and the NYPD, alleged in ¶¶ 1-30, 32 and 33-34 violated plaintiffs' rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

THIRD CLAIM FOR RELIEF

39. Plaintiffs repeats and reallege the allegations contained in ¶¶ 1-32, 34, and 36-38.

40. The conduct toward plaintiffs alleged herein constituted a gross violation of their right to be free from unreasonable searches, the intentional, willful and malicious infliction of severe physical, mental and emotional distress, and employee negligence.

41. The conduct toward plaintiffs alleged herein terrorized them and subjected them to trauma, shock, debasement, fright, fear, humiliation, embarrassment, loss of freedom, harassment, and physical, psychological and emotional injury, trauma, pain, and suffering.

FOURTH CLAIM FOR RELIEF

42. Plaintiffs repeats and reallege the allegations contained in ¶¶ 1-32, 34, 36-38, and 40-41.

43. At all times relevant herein, the individual defendants were on duty and were acting within the scope of their employment as agents, servants and employees of the City of New York, which is therefore responsible for their conduct under common law, state law and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against all individual defendants, jointly and severally;

- (c) Reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
December 20, 2010

/s/ Joel Berger
JOEL BERGER
360 Lexington Avenue, 16th Fl.
New York, New York 10017
(212) 687-4911

ATTORNEY FOR PLAINTIFFS

TO: SUMIT SUD, ESQ.
Assistant Corporation Counsel
Special Litigation Division
NYC Law Department
100 Church Street
New York, NY 10007-2601

ATTORNEY FOR DEFENDANTS

DECLARATION OF SERVICE

STATE OF NEW YORK)
)
COUNTY OF NEW YORK)

JOEL BERGER declares, pursuant to 28 U.S.C. § 1746, under penalty of perjury, that the following is true and correct:

1. I am the attorney for the plaintiffs in the above-captioned action. I was admitted to practice before the courts of the State of New York on December 23, 1968, and before the United States District Court for the Southern District of New York on April 23, 1970.

2. On December 20, 2010, I personally served the within **FIRST AMENDED COMPLAINT** upon Sumit Sud, Esq., NYC Law Department, attorney for defendants, by depositing a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service, addressed as follows: Sumit Sud, Esq., Assistant Corporation Counsel, Special Federal Litigation Division, New York City Law Department, 100 Church Street, New York, NY 10007-2601. I also emailed a courtesy copy to Mr. Sud on December 20, 2010.

Dated: New York, New York
December 20, 2010

/s/ Joel Berger
JOEL BERGER